

01

STATE OF IOWA
BEFORE THE IOWA BOARD OF CHIROPRACTIC EXAMINERS

IN THE MATTER OF:	)	CASE NO. 00-004, 00-005, 00-006, 00-008
	)	
DR. VERNON J. ADLFINGER, D.C.	)	NOTICE OF HEARING
License No. 022-04178	)	
	)	
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on March 30, 2001, the Iowa Board of Chiropractic Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 147, 151, and 272C (1999) and 645 Iowa Administrative Code chapters 9, 11, 13, and 44. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on July 25, 2001, before the Board. The hearing shall begin at 9:00 a.m. and shall be held in the Lucas State Office Building-5th Floor Professional Licensure Board Room #525, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645 IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

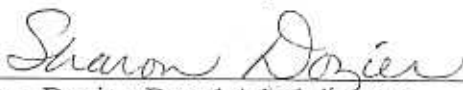
Cris Kuhn
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-7262

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact Cris Kuhn, Assistant Attorney General, at the above telephone number.

If you require the assistance of auxiliary aids or services to participate in the hearing because of a disability, immediately call 515/281-5787.

Dated this 2nd day of April 2001.

A handwritten signature in cursive script, reading "Sharon Dozier", is written over a horizontal line.

Sharon Dozier, Board Administrator
Iowa Board of Chiropractic Examiners

01

BEFORE THE BOARD OF CHIROPRACTIC EXAMINERS
STATE OF IOWA

IN THE MATTER OF:	)	CASE NOS. 00-004, 00-005, 00-006
	)	00-008
DR. VERNON J. ADLFINGER, D.C.	)	
License No.022-04178	)	STATEMENT OF CHARGES
	)	
RESPONDENT.	)	

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code chapters 17A, 147, 151, and 272C (2001) the Iowa Board of Chiropractic Examiners (Board) has jurisdiction of this matter.

Licenses issued by the Board are subject to the laws of the State of Iowa and the administrative rules promulgated by the Board.

Dr. Vernon J. Adlfinger, D.C. was originally licensed to practice chiropractic in the State of Iowa on August 30, 1972, and holds license number 022-04178.

Respondent's license is current through June 2002. In 1997, the Respondent was disciplined by the Board in case number 96-011 for violations of administrative rules governing chiropractic consultants and professional competency.

The Respondent's current address as reported to the Board and recorded in records maintained by the Board is 3584 N. Willow Ct. #14, Bettendorf, IA 52722.

COUNT I

The Respondent is charged with violating Iowa Code sections 151.9(2), 147.55(2), 272C.3(2)(a) & (b), 272C.4(6), and 272C.10(2), and the Board's administrative rules at 645 IAC 44.1(2)(b), (c), (d), and (e), 645 IAC 44.1(8), and 645

IAC 44.1(12), and 645 IAC 40.24(2) for his repeated failure to prepare and retain adequate patient records.

CIRCUMSTANCES

1. The Respondent was issued a license to practice chiropractic in the State of Iowa on or about August 30, 1972.

2. The Respondent failed to keep patient records and/or keep adequate patient records in accordance with the standards of practice by chiropractic physicians in the state of Iowa.

3. The Respondent failed to maintain clinical and fiscal records in support of the services rendered for the period of time as prescribed by the Board's administrative rules.

4. The Respondent has engaged in conduct which violated the laws and rules governing the practice of chiropractic and the Board has jurisdiction to initiate a disciplinary proceeding in this case.

COUNT II

Respondent is charged with violating Iowa Code sections 151.9(3), 147.55(3), and 272C.10(3) and the Board's administrative rules at 645 IAC 40.24(1), (2) and (5) and 645 IAC 44.1(3)(a) & (b) for misleading, deceptive, or untrue testimony or fraudulent misrepresentations at a civil trial.

CIRCUMSTANCES

1. The Respondent was issued a license to practice chiropractic in the State of Iowa on or about August 30, 1972.
2. On October 31, 1996, the Board charged the Respondent with violation of the Board's administrative rules governing chiropractic consultants and professional competency.
3. On May 14, 1997, the Board disciplined the Respondent for the violation of the administrative rules governing chiropractic consultants and professional competency, and ordered him to complete continuing education in orthopaedic and neurological testing and chiropractic consultation, comply with all rules governing chiropractic consultation, and accurately describe his credentials.
4. On January 15, 1998, the Respondent testified at a jury trial under oath to the following:

Attorney: Have you had a problem with not having proper qualifications to testify as a chiropractic consultant?

Respondent: No, I have not.

Attorney: You have never had any problem with qualifications to testify as a chiropractic consultant, is that correct?

Respondent. I have always been able to testify as a chiropractic consultant.
5. In light of the 1996 charges and 1997 discipline, the Respondent's testimony was misleading, deceptive, untrue or constituted fraudulent misrepresentations and the

Respondent has engaged in conduct which violated the laws and rules governing the practice of chiropractic and the Board has jurisdiction to initiate a disciplinary proceeding in this case.

FINDING OF PROBABLE CAUSE

On March 28, 2001, the Iowa Board of Chiropractic Examiners found probable cause to file this Statement of Charges and to order a hearing set in this case.

Dated this 30th day of March, 2001.

IOWA BOARD OF CHIROPRACTIC
EXAMINERS


By Sharon Dozier, Board Administrator

Copies to:

Cristina Kuhn
Assistant Attorney General
Hoover Building
LOCAL

Department of Inspections and Appeals
Fair Hearings Division
Lucas Building
LOCAL